

# SUPPORT ANIMALS — FAIR-HOUSING LEGAL REFERENCE

Association of Apartment Owners of Nā Hale O Mākena

**Terminology.** The Association has adopted “**Support Animal**” as its standard term; it is **synonymous with “assistance animal”** under Hawaii Administrative Rules §12-46-306, HRS Chapter 515, and the federal Fair Housing Act. This reference **deliberately retains the statutory term “assistance animal”** when stating what the law requires, so the authorities are quoted accurately — read the two as the same thing.

**What this document is.** This is a **reference** that summarizes what fair-housing law requires, permits, and prohibits with respect to assistance animals in housing. **It is not the Association’s policy** and is not submitted to the Board for adoption. The Association’s operative policy is the **Support Animal Policy (Owner & Resident Notice)**; this reference exists to support that policy and to guide the Board and the Resident Manager in applying it correctly. Where this reference and the law differ, the law controls.

## 1 Governing authorities

| Authority                       | Status                         | What it does                                                                                                                                                                                                                                                                                                                                |
|---------------------------------|--------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>HAR §12-46-306</b>           | In force                       | <b>The controlling rule.</b> Defines the discriminatory practice; authorizes verification where the disability or the need is not readily apparent; bars inquiry into diagnosis, nature, or severity; and enumerates the restrictions that may lawfully be imposed on an assistance animal. Enforced by the Hawaii Civil Rights Commission. |
| <b>HRS Chapter 515</b>          | In force                       | The state fair-housing statute the rule implements (§515-3, §515-16).                                                                                                                                                                                                                                                                       |
| FHA, 42 U.S.C. §3604(f)         | In force                       | Federal statute; refusing a reasonable accommodation in rules, policies, practices, or services is discrimination.                                                                                                                                                                                                                          |
| 24 CFR §100.204                 | In force                       | Implementing regulation; expressly reaches <b>public and common use areas.</b>                                                                                                                                                                                                                                                              |
| Bylaws §10.7 (as amended 2019)  | Recorded                       | Bars animals except fish; <b>permits service animals or assistance animals “upon which disabled Owners or Occupants depend for assistance”</b> — the dependency qualification is part of the recorded text and is the eligibility gate; control standard is “under control of its handler”; cure-before-ejectment; indemnity.               |
| HUD FHEO-2020-01 & FHEO-2013-01 | <b>Withdrawn<br/>9/17/2025</b> | <b>No longer citable as authority.</b> HUD withdrew both assistance-animal notices and directed that they not be relied upon. Their substance may still inform good practice, but only the statutes and rules above are binding.                                                                                                            |
| ADA Title III                   | Inapplicable                   | NHOM is residential; no area is a §12181(7) public accommodation. Materials that call this an “ADA” question are mislabeled — the FHA and Hawaii fair-housing law govern.                                                                                                                                                                   |

2 Key definitions

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| Term                     | Meaning under the law                                                                                                                                                                                                                                                                                                                                   |
|--------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Assistance animal        | An animal that works, provides assistance, performs tasks for, or provides therapeutic emotional support that alleviates a symptom or effect of a person’s disability. <b>Need not be a dog and need not be individually trained.</b> Includes service animals, support animals, therapy animals, and comfort animals (Hawaii Civil Rights Commission). |
| Service animal           | A dog individually trained to do work or perform tasks for a person with a disability — a subset of assistance animals.                                                                                                                                                                                                                                 |
| Person with a disability | A person with a physical or mental impairment that substantially limits one or more major life activities (HAR §12-46-302). No accommodation is required for a person who qualifies <i>solely</i> under the “record of impairment” or “regarded as” prongs (HAR §12-46-306(c)).                                                                         |
| Readily apparent         | Observable without inquiry. Where the disability <b>or</b> the disability-related need is readily apparent, <b>no verification may be requested.</b>                                                                                                                                                                                                    |
| Direct threat            | A significant risk to the health or safety of others that cannot be eliminated or reduced by reasonable accommodation, established by an <b>individualized assessment of the specific animal’s actual conduct</b> — never by breed, size, or weight.                                                                                                    |

3 What the law requires: the two-question test

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Entitlement to an assistance animal turns on two questions, and only these two:

1. **Does the person have a disability?** — a physical or mental impairment that substantially limits a major life activity.
2. **Is there a disability-related need for the animal?** — does the animal work, perform tasks, assist, or alleviate one or more symptoms or effects of the disability?

If both are yes, the accommodation is required. The law does not permit the housing provider to weigh whether the person “really needs” the animal, to second-guess the treating professional, or to compare the animal to alternatives.

4 What may and may not be asked

| The law PERMITS                                                                                                      | The law PROHIBITS                                                                             |
|----------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------|
| Requesting verification that the person has a disability — only where the disability is not readily apparent         | Requesting medical records                                                                    |
| Requesting verification of the disability-related need — only where that need is not readily apparent                | Requesting access to health-care providers                                                    |
| Accepting a letter from the person’s treating health-care professional, mental-health professional, or social worker | Inquiring into the diagnosis, nature, or severity of the disability                           |
| Requesting only such information as is reasonably necessary to evaluate the request                                  | Requiring a specific form, a notarized letter, or a particular provider                       |
| Requesting documentation of County licensing and vaccination                                                         | Requiring training certification, registration, or an ID card for the animal                  |
| Asking what the animal does for the person                                                                           | Charging a pet fee, pet rent, or pet deposit, or requiring liability insurance as a condition |

HAR §12-46-306(A)(1) — THE CORE RULE, VERBATIM

It is a discriminatory practice “[t]o refuse to engage in a real estate transaction or to deny equal opportunity to use and enjoy a housing accommodation with a person with a disability because the person uses an assistance animal. If the disability is not readily apparent, an owner or other person engaging in a real estate transaction may request information that verifies that the person has a disability... However, an owner or other person engaging in a real estate transaction **may not request medical records or access to health care providers, and may not inquire as to the diagnosis, nature or severity** of the person’s disability.”

**Online “registrations” and certificates.** Internet assistance-animal registries, certificates, and ID cards are not recognized and neither establish nor defeat a request; their absence is not a ground for denial.

5 Restrictions the Association MAY impose

HAR §12-46-306(a)(1) expressly permits reasonable restrictions on an assistance animal for excessive noise or other problems, including:

- (A) observing applicable laws, including leash and pick-up laws;
- (B) assuming responsibility for damage the animal causes;
- (C) cleaning the unit on vacating (fumigation, deodorizing, professional carpet cleaning);
- (D) cleaning the animal’s waste;
- (E) licensing the animal with the county, if the county requires it;
- (F) vaccinating the animal, with documentation;
- (G) keeping the animal under control by harness, leash, tether, cage, carrier, or other physical control in common areas — **provided that** where the nature of the disability makes physical control impracticable, or physical

control would interfere with the assistance, the handler may be required to control the animal by voice, signals, or other effective means instead; and

- **(H)** any other reasonable restriction that would leave the unit in the condition it was in before the occupancy, except reasonable wear and tear.

**The limit on restrictions.** Restrictions must be **reasonable**, must regulate the animal's **conduct** (not its species or breed), and may not be used to deny or effectively defeat the accommodation. The control restriction (G) must always preserve the voice/signal alternative for a handler whose disability makes physical control impracticable.

## 6 Removal and the direct-threat standard

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An approved assistance animal may be removed only for its **conduct**, and never for its breed, size, or weight. Removal requires:

1. documentation of the specific incidents (what the animal actually did);
2. written notice to the handler and a reasonable opportunity to correct the problem by measures short of removal;
3. a reasoned determination that less drastic alternatives have failed — consistent with the cure-before-ejection sequence in Bylaws §10.7(b); and
4. allowing the animal to remain for a reasonable period while a suitable replacement is found, if the problem is sufficiently controlled in the interim.

A “direct threat” or substantial-physical-damage finding must rest on an **individualized assessment of the specific animal's actual conduct**, not on generalized concern about a species.

## 7 Accommodations vs. modifications, and cost

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Under the restated Declaration ¶9 and fair-housing law:

- A **reasonable accommodation** is a change to rules, policies, practices, or services (such as an exception to the no-pets rule for an assistance animal); the Association bears its cost.
- A **reasonable modification** is a physical or structural change to the unit or common elements; the requesting resident bears its reasonable cost, except as otherwise required by law.
- An accommodation may be denied only where it imposes an **undue financial and administrative burden**, **fundamentally alters** the Association's operations, or the specific animal is a **direct threat** — and a denial should be preceded by an offer to discuss an alternative.

## 8 Records access and confidentiality

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- Information a requester submits in support of an accommodation is **confidential**; it is kept separate from general Association records and disclosed only to those who need it to decide or administer the request.
- Owner access to Association records is governed by HRS §514B-154 and §514B-154.5, and directors' access by Bylaws §4.21; disability-related accommodation files are handled with the confidentiality above, not disclosed as ordinary association records.
- Records must be kept on-island (HRS §514B-152).

### 9 Recommended next steps for the Association

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This reference supports the Association’s **Support Animal Policy (Owner & Resident Notice)**, which is the operative instrument. To complete the administrative framework, the Association should:

- Note that the **Assistance Animal Request Form** (a fillable form) is **already developed** and in use.
- Consider developing the remaining workflow forms — a verification-request letter, an approval letter, a denial / interactive-process letter, and a bilateral reasonable-accommodation agreement — when it finalizes its procedures. These are **recommended**, not legally required.
- Confirm the timing regime for decisions: the restated Declaration ¶9 (“promptly and reasonably,” no fixed deadline) versus the currently recorded ¶9 (45-day deemed-granted rule), which governs until the restatement is recorded.

**Sources.** HAR §12-46-306 and HRS Chapter 515 as reproduced in *NHOM\_Legal\_Reference\_Statutes\_v2026-07-26C*; FHA (42 U.S.C. §3604(f)); 24 CFR §100.204; Bylaws §10.7 (2019) and §4.21; HRS §514B-152, §514B-154, §514B-154.5; Declaration ¶9 (recorded and restated); HUD, *Notice of the Withdrawal of FHEO Guidance Documents*, September 17, 2025. Reference document — not legal advice; confirm application with counsel.